

		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended documents, and file a proof of service. No earlier hearing date is available for this motion.
10	Padilla v. Surgical Care Affiliates, LLC, et al. 2024-01399066	<u>Status Conference in Padilla v. Surgical Care Affiliates, LLC, Case No. 2024-01399066</u> The court has reviewed the parties' joint status conference statement filed June 17, 2026 (ROA 74), and based thereon continues the June 25, 2026 status conference to <u>November 12, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. Clerk to give notice.
11	Teffeteller v. Fitness International, LLC 2024-01407578	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$783,115 PAGA settlement. The court has the following questions and comments: 1. Were the supplemental motion papers submitted to the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. In the February 26, 2026 order (ROA 101), the court stated that the parties should provide the average, high and low individual PAGA payments. Plaintiff states the parties cannot do so at this time. Supp. Brief (ROA 104) at 14:3-9. This information is routinely provided with approval motions and the parties are ordered to provide it with the supplemental filing. Relatedly, plaintiff estimates the net settlement amount is approximately \$126,638.32. Supp. Brief at 15:13. Plaintiff states there are 20,326 aggrieved employees. <i>Id.</i> at 17:21. Is the estimated average individual PAGA payment \$6.23? 3. Paragraph 8 of the amendment to the settlement agreement should be revised (i) to specify the "Settlement" referred to in the first sentence, and (ii) to state that defendant will pay \$2,500 to plaintiff in addition to paying the \$785,115 Settlement Payment. Supp. Daugherty Decl. (ROA 106) Ex. 3; see also 2/26/26 Order (ROA 101) No. 6. 4. The "Releasees" provision in paragraph 10 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 7. It includes unrelated, ambiguous and/or unidentified third parties such

		as “agents, “insurers,” “and each of Defendant’s respective successors and predecessors in interest, subsidiaries, affiliates, parents and attorneys, and any individual or entity which could be liable as a joint-employer with Defendant.” 5. The “Covered Claims” provision in paragraph 12 of the amendment to the settlement agreement remains overbroad. See 2/26/26 Order (ROA 101) No. 10. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The following phrases should be removed: (i) “that were made, or could have been made,” and (ii) “or arising out of.” <u>As to the notice letter (Ex. 6 to Supp. Daugherty Decl.):</u> 6. The notice letter should be revised consistent with the above. 7. The word “Plaintiffs” in the second sentence of section III should be “Plaintiff.” 8. The notice letter should use the same terms as in the settlement agreement. E.g., “Covered Claims” rather than “Released Claims.” <u>As to the proposed order and judgment (Ex. 7 to Supp. Daugherty Decl.):</u> 9. The proposed order and judgment should be revised consistent with the above. 10. The proposed order and judgment should be submitted as a separate document with the settlement agreement and any amendments thereto and the notice letter attached as exhibits to the proposed order and judgment. The hearing on plaintiff’s motion for approval is continued to <u>November 5, 2026 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. See also Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement shall be submitted, rather than an “amended settlement agreement,” to streamline the court’s review of the documents.</u> The parties shall provide redlined copies of any revised documents (e.g., revised settlement agreement, revised notice, revised proposed order). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
--	--	--

		No earlier hearing date is available for this motion.
12	Tran, et al. v. Byram Healthcare Centers, Inc. 2023-01309069	<u>Plaintiffs' Motion to Amend Order and Judgment</u> Plaintiffs move to amend the February 26, 2026 order granting final approval of the class action and PAGA settlement in this case and the judgment thereon (ROA 195) (the "Order and Judgment") because the settlement administrator discovered following entry of the Order and Judgment that the gross settlement amount calculated pursuant to the escalator clause in the settlement agreement is lower than previously stated, i.e., the Order and Judgment states the gross settlement amount is \$896,166.35, but the settlement administrator subsequently discovered the gross settlement amount is \$887,287.36. Castro Decl. (ROA 210) ¶ 15. (While plaintiffs style their motion as a "renewed" motion for final approval, review of the motion papers makes clear plaintiffs seek to amend the Order and Judgment.) Plaintiffs' unopposed motion to amend the Order and Judgment to modify the gross settlement amount stated at page 2 line 13 of the Order and Judgment is granted. Plaintiffs state that other than modifying the gross settlement amount, the Order and Judgment should otherwise remain unchanged. To the contrary, as the gross settlement amount has decreased, the amount of attorneys' fees awarded to Class Counsel should also decrease proportionally. The Order and Judgment awarded Class Counsel \$291,666.67 in attorneys' fees based on a gross settlement amount of \$896,166.35 (i.e., 32.5% of \$896,166.35). The Order and Judgment shall be amended to modify the amount of attorneys' fees awarded to Class Counsel stated at page 2 line 16 to \$288,368.40 (i.e., 32.5% of \$887,287.36). The court will issue an amended order and judgment consistent with the above ruling. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
13	Doe, et al. v. Thompson, et al. 2023-01370866	<u>Attorney Raquel Y. Cooper's Motion to be Relieved as Counsel for Plaintiff John Doe 118</u> Attorney Raquel Y. Cooper moves to be relieved as counsel for plaintiff John Doe 118. The motion is denied. The moving papers (ROA 1049, 1066) state the motion hearing is June 18, 2026 at 2:00 p.m. The hearing was continued to June 25, 2026 at 2:00 p.m. ROA 1086. The court file does not contain a proof of service reflecting notice to plaintiff John Doe 118 of the June 25, 2026 hearing date. This denial is without prejudice to counsel refiling a motion that complies with Rule 3.1362 in all respects. Attorney Raquel Y. Cooper to give notice. <u>Motion to Seal Re: Plaintiff John Doe 118</u>